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Nº. 42

QUEBEC & LEGAL

COLLECTION

Divided or Undivided Co-Ownership?

Choose wisely — two very different ways to own a condo.



2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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Divided vs. Undivided Co-Ownership · Collection Quebec & Legal · Guide No. 42 · 2026 Edition

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Divided vs. Undivided Co-Ownership

Two very different ways to own a condo — choose the right one

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In Quebec, “co-ownership” covers two very distinct realities: divided co-ownership (the classic condo) and undivided co-ownership. They are similar in appearance but differ profoundly in legal, financial and practical terms.

This guide compares the two to help you make an informed choice - because the difference has real-world consequences.

Informative content. Each chapter ends with a lined “My Notes” page.

In Quebec, “co-ownership” covers two distinct realities: divided (the classic condo) and undivided. They look similar but differ profoundly - legally, financially, on resale. This guide compares them for an informed choice.

The difference has real consequences: this guide gives you the grid to choose.

CHAPTER

Divided co-ownership (the classic condo)

> *Understand the most common model.*

In divided co-ownership, each unit has its **own title deed** distinct and its batch number.

- One **union** of co-ownership manages the building.
- One **declaration of co-ownership** regulates rights and obligations.
- **co-ownership charges** and a **provident fund** finance the maintenance.

You finance your unit with your own mortgage: easier to finance and resell.

In divided co-ownership (the classic condo), each unit has its own distinct title and lot number, with a syndicate, a declaration and a contingency fund. You finance it with your own mortgage: it's easier to finance and resell.

> EMILIE'S ADVICE
>
> *In division, read the declaration of co-ownership AND the last minutes of the meeting. They reveal upcoming work, conflicts and the real health of the contingency fund.*

CHAPTER

Undivided co-ownership

> *Understand this particular model.*

In undivided co-ownership, several people own together **ONE building**, without division into separate lots.

Everyone has a **share** of the whole and enjoys a portion according to a **joint ownership agreement**. There are no separate titles per unit.

- Often a lower entry price for a given sector.
- More complex financing: sometimes a joint mortgage.
- Strong interdependence between co-owners.

In undivided co-ownership, several people together own ONE building, without separate lots: each person holds a share according to a joint ownership agreement. Entry price sometimes lower, but more complex financing (sometimes a joint mortgage) and strong interdependence between co-owners.

> EMILIE'S ADVICE
>
> *In undivided ownership, you are linked to the other co-owners, sometimes by a common mortgage. Make sure you know them well and understand the agreement before committing.*

CHAPTER

Divided or undivided: choose wisely

> *Weigh the benefits and risks.*

The two models are similar in appearance, but differ profoundly:

- **Divides** : simpler, more liquid, better structured - often the default choice.
- **Undivided** : sometimes more affordable, but more complex to finance and resell, very dependent on the agreement and the other co-owners.

In both cases: check documents, finances and rules before buying. The right choice depends on your budget and your tolerance for complexity.

At a comparable price, the division offers more peace of mind and is more easily resold; joint ownership can be interesting but go into it with your eyes open, not just to save money. In both cases, check documents, finances and rules before purchasing.

> EMILIE'S ADVICE
>
> *At a comparable price, the division offers more peace of mind and is more easily resold. Joint ownership can be interesting, but go into it with your eyes open, not just to save money.*

CHAPTER

The contingency fund and charges

> *Evaluate the financial health of the co-ownership.*

A co-ownership is also a small collective enterprise. Their financial health concerns you directly:

- **Monthly charges** : covers routine maintenance and services.
- **Contingency fund** : reserve for major repairs (roof, facade, elevator).
- **Study of the provident fund** : evaluates whether the reserve is sufficient.

Underfunded fund announces **special contributions** futures: this is a signal not to be ignored.

Financial health concerns you directly: monthly charges, contingency fund (reserve for roof, facade, elevator), study of the fund. Abnormally low charges are not a godsend: they often hide insufficient funds, and therefore future special contributions.

> EMILIE'S ADVICE
>
> *Abnormally low charges are not a godsend: they often hide an insufficient contingency fund. You will pay sooner or later, in the form of a special contribution.*

CHAPTER

Checks before buying

> *Reduce unpleasant surprises.*

Before signing, whatever the model, do your documentary inspection:

1. Read the **declaration** (divides) or the **agreement** (undivided).
2. Consult the **minutes** and the **budget**.
3. Check the status of the **provident fund** and the planned work.
4. Confirm the **regulations** (animals, rental, renovations).

Have these documents examined by your notary: this is the best defense against costly surprises.

Before signing, do your documentary inspection: read the declaration (divided) or the agreement (undivided), the minutes, the budget, the state of the fund and the regulations (animals, rental, renovations). Have these documents reviewed by your notary - it's the best defense against surprises.

> EMILIE'S ADVICE
>
> *Always buy a condo "documents in hand". A poorly read declaration can hide a ban on renting, imminent work or a pending dispute. The notary is your ally here.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Confirm the type of co-ownership of the unit concerned.
2. Gather the documents (declaration or agreement).

Within 30 days

1. Have the declaration (divided) or the agreement (undivided) examined.
2. Check funding implications.

Then

1. Choose with full knowledge of the facts, with Emilie and the notary.

Before buying

1. Confirm the type of co-ownership and gather declaration/agreement, finances and minutes.
2. Have the documents examined by a notary before lifting my conditions.

REFERENCES

Resources & glossary

- Divided co-ownership: classic condo, separate title per unit.
- Undivided co-ownership: share of a single building, without separate lots.
- Joint ownership agreement: agreement regulating undivided rights and obligations.
- Provident fund: collective savings (especially divided).
- Liquidity: ease of resale, generally better in parts.

- Divided co-ownership: classic condo, separate title per unit.
- Undivided co-ownership: share of a single building, without separate lots.
- Joint ownership agreement: agreement regulating undivided rights and obligations.

- Contingency fund: collective reserve for major repairs.
- Special contribution: one-off contribution when the fund is not sufficient.

GO FURTHER

Quiz - test yourself

1. In divided co-ownership, each unit has:

A) A share
B) Its own separate title to the property
C) No title
D) A lease

2. In undivided co-ownership, we hold:

A) A separate batch
B) A share of a single building
C) A lease
D) Nothing

3. The undivided property is supervised by:

A) A declaration of co-ownership
B) A joint ownership agreement
C) A lease
D) No documents

4. The division is generally:

A) Less liquid
B) Easier to finance and resell
C) Prohibited
D) Without a union

5. The undivided property is often:

A) Easier to finance
B) More affordable but more complex to finance and resell
C) Without co-owners
D) Without agreement

6. The contingency fund is used to:

A) Pay for groceries
B) Finance major repairs
C) Reduce the price
D) Pay the notary

7. Abnormally low charges can hide:

A) Insufficient contingency fund
B) A risk-free bargain
C) A reduction in taxes
D) Nothing

8. An underfunded fund often announces:

A) A reduction in expenses
B) Future special contributions
C) A refund
D) No effect

9. Before buying, you must read:

A) Nothing
B) Declaration/convention, minutes and budget
C) The newspaper
D) The neighbor's lease

10. To examine the documents, the best ally is:

A) The neighbor
B) The notary
C) The insurer
D) The city

Answers

1. B - Separate title per unit (chap. 1).
2. B - Share of the whole (chap. 2).
3. B - Joint ownership agreement (chap. 2).
4. B - More liquid (chaps. 1 and 3).
5. B - More complex (chap. 3).
6. B - Reserve for repairs (chap. 4).
7. A - Signal of an underfunded fund (chap. 4).
8. B - Special contributions (chap. 4).
9. B - Documentary inspection (chap. 5).
10. B - The notary (chap. 5).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

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